



SPONSOR: Rep. Heffernan & Sen. Mantzavinos

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 128

AN ACT TO AMEND TITLE 19 OF THE DELAWARE CODE RELATING TO THE FAMILY AND MEDICAL LEAVE INSURANCE PROGRAM.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend Chapter 37, Title 19 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 3703. Duration of benefits.

4 (a) A covered individual is eligible for a maximum of 12 weeks of family and medical leave benefits in an
5 application year.

6 (2) The maximum aggregate number of weeks during which medical leave and family caregiving leave
7 benefits are payable under § 3702(a)(2), (a)(3), and (a)(4) of this title in an application year is ~~6 weeks in any 24-month~~
8 ~~period.~~ weeks.

9 (c) Except for parental leave benefits, and as permitted under § 3706 of this title, a covered individual is eligible
10 for benefits under this chapter not more than once in a ~~24-month~~ 12-month period.

11 § 3705. Contributions.

12 ~~(f) An employer with an approved self-insured private plan under § 3716 of this title may collect contributions~~
13 ~~from employees beginning on [the effective date of this Act].~~

14 § 3709. Coordination of benefits.

15 (a) (1) Covered leave that also qualifies as leave under the FMLA runs concurrently with leave taken under the
16 FMLA and may not be taken in addition to leave under the FMLA.

17 (2) An employer may require that payment made under this chapter be made concurrently or otherwise
18 coordinated with payment made or leave allowed under the terms of disability or family care leave under a collective
19 bargaining agreement or employer policy. The employer shall give employees written notice of this requirement.
20 Disability insurance benefits may be offset by family and medical leave benefits pursuant to the terms of a disability
21 insurance policy.

(5) The paid family and medical leave insurance program under this chapter is the primary payor. Other available paid leave benefits must be coordinated with the paid family and medical leave benefit according to the terms of the policy or procedure governing other available benefits.

§ 3716. Private plans.

(a) (1) Except as provided under subsection (e) of this section, an employer may apply to the Department for approval to meet the employer's obligations under this chapter through a private plan. To be approved as meeting an employer's obligations under this chapter, a private plan must do all of the following:

b. Allow a covered individual to take, in the aggregate, the maximum number of weeks of covered leave in a benefit year or ~~24-month~~ 12-month period as required under § 3703(a) and ~~(d)~~ (c) of this title.

(3) The Department must accept applications for approval of private plans on a rolling basis, with effective dates of January 1, April 1, July 1, or October 1.

(h) An employer that meets its obligations under this chapter through a private plan is not required to provide claim documentation to the Department unless the claim is the subject of an appeal, complaint, audit, or specific inquiry from the Department.

(i) If an employer that meets its obligations under this chapter through a private plan voluntarily elects to provide coverage for any reason listed under § 3702(a) of this title that is not a required type of coverage for that employer due to having fewer than 25 employees, all the provisions of this chapter are applicable as if the employer were a covered employer, including the right of employees to appeal under § 3711 of this title.

§ 3725. Paid Leave Advisory Committee.

(a) The Secretary shall establish an advisory committee to review issues related to the implementation and administration of the family and medical leave insurance program established under this chapter and to review proposed statutory and regulatory amendments related to the program.

(b)(1) The advisory committee consists of 9 members appointed by the Secretary as follows:

a. A representative of the Delaware Paid Leave Division.

b. Four members who represent employees.

c. Four members who represent employers, at least one of whom represents employers that employ fewer than 25 people.

(2) Members shall serve for a term of two years and may be reappointed. In the event of a vacancy for any reason, the Secretary shall make an appointment that becomes immediately effective for the remainder of the unexpired term.

52 (3) The representative of the Delaware Paid Leave Division shall serve as the chair of the advisory committee.

53 (c) The advisory committee must advise and make recommendations to the Director regarding issues related to the
54 program, including:

55 (1) Implementation.

56 (2) Administration.

57 (3) Rulemaking.

58 (4) Financial matters.

59 (d) Department staff must consult with the paid leave advisory committee at least once monthly through December
60 31, 2028. Beginning January 1, 2029, the committee must meet at least quarterly.

SYNOPSIS

This Act corrects an error in the existing code to clarify that the maximum aggregate number of weeks during which medical leave and family caregiving leave benefits are available is 6 weeks in an application year. This Act also amends existing code to specify that a covered individual is eligible for benefits not more than once in a 12-month period rather than a 24-month period.

This Act further provides that the Paid Family and Medical Leave Insurance Program is the primary payor, and other paid leave benefits must be coordinated with this benefit according to the terms of the policy or procedure governing other benefits. This Act also allows disability insurance benefits to be offset by family and medical leave benefits paid to an employee pursuant to the terms of a disability insurance policy.

This Act addresses private plans, and clarifies that an employer that meets its obligations under Chapter 37 of Title 19 through a private plan does not need to provide claim documentation to the Department except if there is an appeal, complaint, audit, or specific inquiry from the Department. Private plan employers with fewer than 25 employees that voluntarily elect to provide coverage under the Chapter that is otherwise exempted due to the size of their companies will be subject to all of the provisions of the Chapter.

This Act establishes a Paid Leave Advisory Committee to review issues related to the implementation and administration of the Paid Family and Medical Leave Insurance Program and to review proposed statutory and regulatory amendments to the program.